

Shabbir Ahamad v. Collector, District Allahabad & 4 Others

High Court of Judicature at Allahabad · Division Bench · 19 January 2023 · WRIT - C No. 38315 of 2022 · **Recovery certificate withdrawn as issued by mistake; petition disposed of on that stand.**

HEADNOTE

Where the licensee admits that a recovery certificate for electricity dues was issued by mistake after the connection had been permanently disconnected, that no amount is recoverable, and that the certificate has been withdrawn, the writ challenging that certificate is disposed of on that stand. Shabbir Ahamad sought quashing of a recovery certificate dated 25 November 2022 on the ground that his connection had been permanently disconnected in 1995. Counsel for Purvanchal Vidyut Vitran Nigam Limited stated that the certificate was generated by a computer-system fault, that permanent disconnection had already been made, and that nothing was due, and produced a letter of 7 January 2023 asking the Additional District Magistrate (Finance and Revenue), Prayagraj, to drop the recovery. The Managing Director's affidavit recorded that the Executive Engineer was prima facie guilty of lapses, that an inquiry had been ordered, and that officers had been directed to comply with the Electricity Supply Code, 2005 and to verify the record before issuing any recovery. The Court did not construe any numbered Code clause and did not itself direct disciplinary action.

FACTUAL SUMMARY

Shabbir Ahamad, a senior citizen aged about 76, filed Writ-C No. 38315 of 2022 in the Allahabad High Court against the Collector, District Allahabad and four others, seeking to quash a recovery certificate dated 25 November 2022 issued by respondent no. 4 for electricity dues. His case was that the connection had been permanently disconnected in 1995. The authority had itself certified that he was not using electricity from the date of disconnection.

On 2 January 2023 coercive action was stayed. On 9 January 2023 counsel for Purvanchal Vidyut Vitran Nigam Limited stated that the certificate had been issued by a computer-system fault, that permanent disconnection had already been made, and that no amount was recoverable, and produced a letter of 7 January 2023 asking the Additional District Magistrate (Finance and Revenue), Prayagraj, to drop the recovery. The Court called for the Managing Director's personal affidavit. On 19 January 2023 that affidavit recorded an inquiry against the Executive Engineer, and counsel stated that the recovery certificate had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::unspecified

Recovery certificate issued by mistake after permanent disconnection withdrawn; writ disposed on the licensee's stand

QUESTION

Where the licensee admits that a recovery certificate was issued by mistake after permanent disconnection, that no amount is recoverable, and that the certificate has been withdrawn, does the writ challenging that certificate survive?

HOLDING

No. The petition was disposed of in terms of the respondents' stand. The petitioner's case was that the connection had been permanently disconnected in 1995, so the recovery certificate dated 25.11.2022 was illegal. On 9.1.2023 counsel for respondent no. 4 stated that the recovery was issued by mistake on account of a fault in the computer system, that permanent disconnection had already been made, and that no amount was recoverable, and produced a communication of 7.1.2023 from respondent no. 4 to the Additional District Magistrate (Finance and Revenue), Prayagraj, praying that the recovery proceeding be dropped. The Court required the Managing Director, Purvanchal Vidyut Vitran Nigam Limited, to file a personal affidavit and to show cause why action should not be directed against officers issuing recovery certificates without verifying from the record whether any amount was due. The affidavit stated that a preliminary inquiry found the Executive Engineer of the Division prima facie guilty of lapses, that an inquiry had been ordered by OM No. 177 dated 16.01.2023, and that a general direction had been issued to all officers to ensure strict compliance

with the Electricity Supply Code, 2005 and to verify the correct facts from the record before issuing any recovery. Counsel then stated that the recovery certificate had been withdrawn. Having regard to that stand, the Court disposed of the petition. ¶ [order of 9.1.2023](#); [order of 19.1.2023](#)

QUALIFIER

The Court did not cite or construe any numbered clause. The only reference to the Electricity Supply Code, 2005 is in the Managing Director's affidavit. Disposal is on the concession and the withdrawal, not on an independent finding that dues after a 1995 permanent disconnection are barred.

FLAG Source PDF concatenates four unnumbered orders, treated as the narrative sequence: 2.1.2023 (Mahesh Chandra Tripathi and Vivek Kumar Singh, JJ.; prima facie case on the authority's endorsement that the petitioner was not using the connection from disconnection; no coercive action; listed 9.1.2023 as fresh), 9.1.2023 (Manoj Kumar Gupta and Dinesh Pathak, JJ.; concession, show-cause to the Managing Director, connected with Writ-C No. 37137 of 2022, listed 18.1.2023), 18.1.2023 (Manoj Kumar Gupta and Vikram D. Chauhan, JJ.; put up on 19.1.2023), and the disposing order of 19.1.2023 (same bench). Coram is the disposing bench. The judgment spells the licensee 'Purvanchal Vidhyut Vitran Nigam Limited' on 9.1.2023 and 'Purvanchal Vidhut Vitran Nigam Limited' / 'P.V.V.N.L.' on 19.1.2023. Catalog hit UP-2005::9.1 is a false positive; no clause number is cited. Respondent no. 4 is the electricity department; the Collector, District Allahabad is the first respondent. No precedent is cited. 'Causal approach' is the Court's spelling on 9.1.2023.

PRINCIPLE TAGS

recovery-citation-conceded-incorrect-billing Counsel for the licensee stated that the recovery certificate dated 25.11.2022 was issued by a computer-system fault after permanent disconnection, that no amount was recoverable, and that the certificate had been withdrawn. The writ was disposed of on that stand, without a merits finding on the dues. ¶ [order of 9.1.2023](#); [order of 19.1.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY DUES CAN LAWFULLY BE RECOVERED BY CERTIFICATE AFTER A PERMANENT DISCONNECTION IN 1995, INCLUDING ANY TWO-YEAR LIMITATION

The petitioner said the 1995 permanent disconnection made the certificate illegal. The licensee admitted that nothing was due and withdrew the certificate. The Court did not apply Section 56(2) of the Electricity Act, 2003 or any Supply Code limitation clause. ¶ [order of 19.1.2023](#)

NOT DECIDED — WHETHER THE COURT SHOULD ITSELF DIRECT DISCIPLINARY ACTION AGAINST THE OFFICERS WHO ISSUED THE RECOVERY CERTIFICATE

The order of 9.1.2023 called on the Managing Director to show cause. The affidavit recorded a preliminary finding and an inquiry under OM No. 177 dated 16.01.2023. The Court did not direct action or record its own finding of guilt.

¶ [order of 9.1.2023](#); [order of 19.1.2023](#)

NOT DECIDED — ANY NUMBERED CLAUSE OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Code is mentioned only in the Managing Director's statement that officers had been directed to comply with it and to verify the record before issuing recovery. No clause was quoted or applied. ¶ [order of 19.1.2023](#)

NOT DECIDED — WRIT-C NO. 37137 OF 2022, IN WHICH A PERSON WAS SAID TO HAVE BEEN SENT TO CIVIL PRISON ON A RECOVERY CERTIFICATE LATER WITHDRAWN AS WRONGLY ISSUED

Cited on 9.1.2023 as a similar instance of mechanical issuance, and this writ was directed to be listed with it. That writ was not decided here. ¶ [order of 9.1.2023](#)

NOT DECIDED — COMPENSATION OR OTHER RELIEF FOR HARASSMENT OF THE PETITIONER

On 9.1.2023 counsel submitted that the petitioner, aged about 76, had been put to unnecessary harassment. No such relief was granted. ¶ [order of 9.1.2023](#)